

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #1	CCRB Case #: 201510115	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/28/2015 5:00 PM	Location of Incident: 72nd Precinct Stationhouse	Precinct: 72	18 Mo. SOL 5/28/2017	EO SOL 5/28/2017	
Date/Time CV Reported Mon, 11/30/2015 10:52 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/30/2015 10:52 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Salzano	16279	958045	072 PCT
2. SGT Jeremy Banfield	4555	945490	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Stephen Salzano	Abuse: PO Stephen Salzano did not obtain medical treatment for § 87(2)(b) [REDACTED]	[REDACTED]
B.SGT Jeremy Banfield	Abuse: Sgt. Jeremy Banfield did not obtain medical treatment for § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On November 28, 2015 at approximately 4:55 pm, § 87(2)(b) was involved in a dispute and physical altercation with § 87(2)(b) an employee of § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) head-butted § 87(2)(b) causing an injury to § 87(2)(b)'s head, and § 87(2)(b) punched two computer monitors. The police were called and § 87(2)(b) and § 87(2)(b) were arrested and transported to the 72nd Precinct stationhouse. At the stationhouse, § 87(2)(b) was placed in a cell by himself, complained of illness and injury to his arresting officer, PO Stephen Salzano, and the desk sergeant, Sgt. Jeremy Banfield of the 72nd Precinct, and requested medical treatment. Neither officer obtained medical treatment for § 87(2)(b) (**Allegation A** and **Allegation B**). § 87(2)(b) was charged with § 87(2)(b), given a Desk Appearance Ticket, and released.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

On December 2, 2015 during § 87(2)(b)'s interview at the CCRB, he accepted mediation. The case was sent to mediation on December 4, 2015; however, it was rejected by PO Salzano and Sgt. Banfield and returned for investigation on January 7, 2016. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
A notice of claim was returned with negative results.

Civilian and Officer CCRB Histories

- This is the first and only complaint involving § 87(2)(b) (Board Review 01)
- PO Salzano has been a member of the NYPD for one year. No prior complaints have been filed against him.
- Sgt. Banfield has been a member of the NYPD for eight years. Four complaints involving seven allegations have been filed against him, none of which were closed as substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Officer Identification

§ 87(2)(b) stated that he complained to two officers of a headache and requested medical treatment from them while detained in a cell at the 72nd Precinct stationhouse. He said that one of these officers was his arresting officer and described him as a uniformed, 5'9"-6'0", 150 pound, white or Hispanic, male named "Saltano" in his early or mid-20s with brownish hair. § 87(2)(b) described the other officer, who he said was at a desk, as a uniformed, 5'9", 150 pound, skinny, white, male in his 30s or 40s with blond hair and a handlebar moustache (Board Review 02). PO Salzano and Sgt. Banfield both acknowledged that § 87(2)(b) complained to them that he had a headache while he was detained (Board Review 03 and 04). According to their photos, PO Salzano is a 6'0", 148 pound, 22 year old, white, male with black hair and Sgt. Banfield is a 5'5", 135 pound, 35 year old, white, male with blond hair and no facial hair. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A: Abuse of Authority – PO Stephen Salzano did not obtain medical treatment for § 87(2)(b)

Allegation B: Abuse of Authority – Sgt. Jeremy Banfield did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) testified that after he was placed alone in a cell at the stationhouse he realized that his head hurt and he felt dizzy and nauseous. He yelled out that he was feeling ill. He gagged and complained to PO Salzano and Sgt. Banfield that he felt as though he was about to vomit. The officers made statements along the lines of “I’m the king of headaches, maybe you didn’t eat, did you sleep?” and § 87(2)(b) replied that he had to go to the hospital multiple times. Sgt. Banfield told him that he would be out of the stationhouse two hours later and that he needed to calm down. § 87(2)(b) responded that he did not have a couple of hours and repeated that he did not feel well. The officers refused his requests by saying “no.” § 87(2)(b) was never provided medical treatment at the stationhouse. He was released 30 to 45 minutes after he requested treatment (Board Review 02).

§ 87(2)(b) acknowledged that he head-butted § 87(2)(b) during an altercation at § 87(2)(b). When he was brought to the stationhouse, he was not placed in a cell near § 87(2)(b) and could not hear anything that § 87(2)(b) said (Board Review 08). § 87(2)(b)’s arrest report and UF-61 confirm that he head-butted § 87(2)(b) but state that § 87(2)(b) did not sustain an injury and refused medical attention on scene (Board Review 09 and 10).

PO Salzano testified that he asked § 87(2)(b) at § 87(2)(b) whether he needed to go to the hospital and § 87(2)(b) refused. PO Salzano said that he could hear § 87(2)(b) yelling at the stationhouse and that when he approached he complained of a headache but never gagged, complained of nausea, said that he was about to vomit, or requested medical treatment. He brought § 87(2)(b) some chips and water and told § 87(2)(b) that he would be released about 15 minutes later. He did not recall how or if § 87(2)(b) responded (Board Review 04). Sgt. Banfield stated that he approached § 87(2)(b) because he could hear him yelling indistinctly. § 87(2)(b) told him that he had a headache but never complained about nausea. Sgt. Banfield denied that § 87(2)(b) ever gagged in his presence or that he ever requested medical treatment. Sgt. Banfield also told § 87(2)(b) that he would be released 15 minutes later and § 87(2)(b) responded “okay” and stopped yelling (Board Review 03).

The command log described § 87(2)(b)’s condition as “apparently normal” and notes that he was released from police custody on November 28, 2015 at 8:00 pm (Board Review 07). According to § 87(2)(b)’s medical records, on § 87(2)(b), he sought medical treatment at § 87(2)(b). His records indicate that § 87(2)(b) stated that he was involved in an altercation during which he was hit in the face. § 87(2)(b) complained of a headache and “redness to the bridge of the nose” was noted. He denied dizziness or nausea (Board Review 05).

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Investigator: _____
Signature Print Date

Reviewer: _____
 Title/Signature Print Date